

24STLC09285 24STLC09285

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C07%2F01%2F2026

Source SHA-256: 547ca4dac84f189c61d0e078e46a76c474bf37791dd72b03012d67cdab8669bf

Case Number: 24STLC09285 Hearing Date: July 1, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Mihee Kim's Motion to Facts Admitted and Request for Sanctions is denied.

Analysis:

Plaintiff Mihee Kim ("Plaintiff") served Requests for Admissions, Set One, on Defendant Jason Lee ("Defendant Lee") on March 13, 2026. (Motion, Kim Decl., ¶2 and Exhs. A-B.) As of the filing of the instant Motion to Deem Requests of Admission Admitted, on May 13, 2026, Defendant Lee had not served responses to the discovery. (Id. at ¶5.) Plaintiff now moves for an order deeming the Requests for Admission admitted pursuant to Code of Civil Procedure section 2033.280 and for an award of sanctions. Defendant Lee filed an opposition on June 17, 2026 and Plaintiff replied on June 23, 2026.

Discussion

There is no requirement for a prior meet and confer effort before a motion to deem requests for admission can be filed. (Code Civ. Proc., § 2033.280.) Further, the motion can be brought at any time after the responding party fails to serve responses. (Code Civ. Proc., § 2033.280.) The Court is required to deem the requests admitted unless substantially compliant responses are served prior to the hearing date. (Code Civ. Proc., § 2033.280.) Defendant Lee served responses to the Requests for Admissions, Set One, on June 4, 2026.

(Opp., Exh. 1.) Plaintiff acknowledges receipt of the responses and, with the exception of Nos. 21 and 28, does not argue that they are not in substantial compliance with the Discovery Code. (Reply, Kim Decl., ¶15.) The request to deem the admissions admitted, therefore, is denied.

The Court is required to award sanctions under the moving statute. (Code Civ. Proc., § 2033.280, subd. (c).) However, sanctions may be denied if the Court finds the lack of a timely response was substantially justified or imposition of the sanctions would be unjust. (Code Civ. Proc., § 2023.030.) On April 8, 2026, the Court granted Plaintiff's Ex-Parte Application For Order: (1) Declaring Defendant's Counsel of Record Disqualified Due To Disbarment; (2) Ordering Defendant to Retain New Counsel or Appear in Propria Persona; and (3) Directing Direct Service of Future Filings and Service Directly to Defendant. (Minute Order, 04/08/26.)

The Court does not find that Plaintiff propounded the discovery in bad faith. At the time of service, although Defendant's attorney had been disbarred, the Court and parties had not resolved how to handle service in this pending action. Defendant's former attorney, Kevin Jang, was no longer practicing at the time the discovery was served upon him, and he promptly forwarded the discovery to Defendant upon receipt. (Motion, Kim Decl., Exh. A, pp. 2-3.) However, the Court finds that an award of sanctions would be unjust given service of the discovery during a time that Defendant Lee's attorney had been disbarred, and Defendant Lee was in the process of learning of this disbarment and finding new counsel.

Conclusion

Based on the foregoing, Plaintiff Mihee Kim's Motion to Facts Admitted and Request for Sanctions is denied.

Moving party to give notice.